CONFIDENTIALITY AND INTELLECTUAL PROPERTY AGREEMENT

Georgia Institute of Technology Student Program

THIS CONFIDENTIALITY AND INTELLECTUAL PROPERTY AGREEMENT (this "Agreement") is entered into by and between AI2IO, LLC and its parent and affiliated entities (collectively, "AI2IO, LLC"), having offices at [AI2IO, LLC business address], and the other party identified on the signature page of this Agreement ("You"), in connection with Your participation in a student research, coursework, or capstone program sponsored by AI2IO, LLC through the Georgia Institute of Technology ("Georgia Tech"), effective as of the date this Agreement is fully executed (the "Effective Date").

For good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the parties agree as follows:

1 **Definitions.** As used in this Agreement, the following terms have the meanings set forth below.

"Confidential Information" means (a) all non-public and trade secret information (whether or not reduced to writing) that is disclosed or made available by AI2IO, LLC to You, including, without limitation, the following types of information: this Agreement, software codes, designs, procedures, processing flowcharts, configurations, formulas, discoveries, inventions, improvements, concepts, ideas, new product, program, and promotional ideas, recipes, research and development, proprietary research data, techniques, know-how, instruction manuals, training materials, business plan and proposal, financial information, marketing plans and studies, pricing information and the identity of actual or potential customers; and (b) such information that You should have reasonably known to be the confidential information of AI2IO, LLC. Confidential Information does not include information that: (i) was in the public domain on the date of this Agreement or comes into the public domain other than through Your fault or negligence; (ii) You lawfully obtained from a third party without breach of this Agreement and otherwise not in violation of AI2IO, LLCs' rights; (iii) was known to You at the time of disclosure by AI2IO, LLC; (iv) You independently developed without making use of any Confidential Information; or (v) must be disclosed pursuant to the order of any court or governmental agency, provided that You first notify AI2IO, LLC of the order and afford AI2IO, LLC the opportunity to seek a protective order relating to any disclosure.

"Invention" means any products, process, ideas, improvements, discoveries, inventions, designs, algorithms, financial models, writings, works of authorship, content, graphics, data, software, specifications, instructions, text, images, photographs, illustrations, audio clips, trade secrets and other works, material and information, tangible or intangible, whether or not patentable, copyrightable, or otherwise protected (including all versions, modifications, enhancements and derivative works thereof).

"Intellectual Property Rights" means any and all intellectual property rights and other similar proprietary rights in any jurisdiction, whether registered or unregistered, including all rights and interests pertaining to or deriving from: (a) patents and patent applications and any related reexaminations, extensions, and counterparts; inventions, invention disclosures, discoveries and improvements, whether or not patentable; (b) computer software and firmware, including data files, source code, object code and related specifications and documentation; (c) works of authorship, whether or not copyrightable; (d) trade secrets, business, technical and know-how information, non-public information, and confidential information and rights to limit the use or disclosure thereof; (e) trademarks, trade names, service marks, trade dress and logos and the goodwill associated therewith; (f) proprietary databases and data compilations and related documentation; (g) domain names; and (h) licenses of any of the foregoing, including any registrations, applications, renewals, and extensions thereof.

"Company Interest" means any business of AI2IO, LLC or any product, service, Invention, or Intellectual Property Right that is used, or under consideration or development, by AI2IO, LLC.

2 **Nondisclosure.** The term of this Agreement commences on the Effective Date and continues in effect until the earlier of five (5) years of the Effective Date or the date on which a subsequent agreement containing confidentiality obligations is signed between the parties. During the term of this Agreement, You shall: (a) treat

all Confidential Information as strictly confidential; (b) not disclose or use any Confidential Information, except for the benefit of AI2IO, LLC or as otherwise permitted herein; and (c) protect all Confidential Information, whether in storage or in use, with at least the same degree of care as You use to protect Your own non-public information against public disclosure, but in no case with less than reasonable care. Notwithstanding anything to the contrary, the obligations of confidentiality and nondisclosure contained herein shall continue for so long as allowed under applicable Georgia law for any item of Confidential Information that constitutes a trade secret under applicable Georgia law.

3 **Restriction on Use.** You may use the Confidential Information only in accordance with this Agreement, pursuant to certain research, coursework, or capstone project work performed in connection with Your participation in the Georgia Tech student program described above (the "Purpose"), and in no other manner whatsoever, unless You first obtain AI2IO, LLC's authorization in writing. You shall not make copies, reproductions, or extracts of any Confidential Information, nor make use of any Confidential Information in any way contrary to this Agreement. You agree to disclose Confidential Information only to other persons who have a need to know for the Purpose and who are bound by obligations of confidentiality no less restrictive than the terms of this Agreement.

4 **Ownership.** All right, title and interest in and to the Confidential Information (including, without limitation, all patent, copyright, trademark, trade secret and other proprietary rights and interests therein) will remain AI2IO. LLC's exclusive property at all times, and AI2IO, LLC shall be free to use, disclose, reproduce, modify, sublicense, transfer, distribute and exploit any Confidential Information in any manner it deems appropriate in its sole and exclusive discretion. This Agreement will not be construed as AI2IO, LLC's transfer or sale of any rights whatsoever, by license or otherwise, in or to any of its Confidential Information. Upon advance written consent from AI2IO, LLC, You may use certain Confidential Information for educational and portfolio purposes if, and only if, such Confidential Information does not identify AI2IO, LLC or the source of such information, such that the subject of such Confidential Information remains anonymous. To the extent You provide or make available suggestions, comments, ideas, improvements, or other feedback or materials ("Suggestions") to AI2IO, LLC, such Suggestions are owned by AI2IO, LLC.

5 **Intellectual Property Assignment.** In addition to the ownership of Confidential Information addressed in Section 4 above, You agree to assign, and hereby do assign, to AI2IO, LLC all of Your right, title and interest in any Inventions (including all Intellectual Property Rights therein or related thereto) that are made, conceived, or reduced to practice, in whole or in part and whether alone or with others, by You in connection with the Purpose, or which arise out of any activity conducted by, for, or under the direction of AI2IO, LLC in connection with the Purpose (whether or not conducted using AI2IO, LLC's facilities or assets), or which relate directly or indirectly to any Company Interest (collectively, the "Assigned Inventions"). You will promptly and fully disclose all Assigned Inventions to AI2IO, LLC.

You agree, during and after the Purpose, to assist AI2IO, LLC, at AI2IO, LLC's expense, to evidence, record, and perfect AI2IO, LLC's rights in and ownership of the Assigned Inventions, and to execute all documentation reasonably necessary to effect the foregoing. Should AI2IO, LLC be unable to secure Your signature on any such document due to Your incapacity or any other cause, You hereby irrevocably designate and appoint AI2IO, LLC and its duly authorized officers and agents as Your agent and attorney-in-fact to do all lawfully permitted acts to further the prosecution, issuance, and enforcement of patents, copyrights, or other rights or protections relating to the Assigned Inventions, with the same force and effect as if executed by You.

You agree not to incorporate, or permit to be incorporated, any invention conceived, created, developed, or reduced to practice by You prior to, or independently of, the Purpose (collectively, "Prior Inventions") into any work You perform in connection with the Purpose, without AI2IO, LLC's prior written consent. If You use or disclose any Prior Inventions in connection with the Purpose, or any Assigned Invention cannot be fully made, used, reproduced, or otherwise exploited without using or violating any Prior Inventions, You hereby grant to AI2IO, LLC a perpetual, irrevocable, worldwide, royalty-free, non-exclusive, sublicensable right and license to reproduce, make derivative works of, distribute, publicly perform, publicly display, make, have made, use, sell, import, offer for sale, and otherwise exploit and exercise all such Prior Inventions and the Intellectual Property Rights therein.

6 **Moral Rights.** To the extent allowed by applicable law, the terms of this Agreement include all rights of paternity, integrity, disclosure, and withdrawal and any other rights that may be known as moral rights, artist's rights, droit moral, or the like (collectively, "Moral Rights"). To the extent You retain any Moral Rights under applicable law with respect to any Assigned Inventions, You hereby ratify and consent to any action that may be taken with respect to such Moral Rights by, or authorized by, AI2IO, LLC, and agree not to assert any Moral Rights with respect thereto. You will confirm any such ratification, consent, or agreement from time to time as requested by AI2IO, LLC.

7 **Return of Confidential Information.** Upon the expiration or earlier termination of this Agreement and upon AI2IO, LLC's written request, You will immediately (a) return to AI2IO, LLC all Confidential Information (including all copies thereof) and (b) destroy any electronic copies, notes, or personal memoranda that include or make reference to the Confidential Information. Upon request from AI2IO, LLC, You shall deliver a signed form to AI2IO, LLC certifying that all of the Confidential Information was returned or destroyed pursuant to this Section.

8 **Limited Disclosure of Personally Identifiable Information.** Unless disclosure of personally identifiable information (any data that could potentially identify a specific individual) is necessary for the Purpose, AI2IO, LLC acknowledges and agrees that it shall limit its disclosure of personally identifiable information of its customers to You under this Agreement.

9 **Representations.** You represent and warrant that You are not under or subject to any pre-existing obligations or contracts inconsistent with the provisions of this Agreement or that would prevent You from performing in connection with the Purpose. You agree that You will not violate any agreement with, or rights of, any third party, or use or disclose any third-party confidential information or intellectual property in connection with the Purpose. You agree that You have not retained, and will not use in connection with the Purpose, any confidential information belonging to any prior employer, academic institution, or other third party.

10 **Parties' Responsibilities.** Each party shall be responsible for its own acts, omissions, and the results thereof.

11 **Injunctive Relief.** AI2IO, LLC and You acknowledge that the extent of damages arising from the breach of any provision of this Agreement may be difficult or impossible to ascertain, and that no adequate remedy at law would be available as a result of any such breach. You therefore acknowledge that, if You breach any provision of this Agreement, AI2IO, LLC will be entitled to seek injunctive or other equitable relief, in addition to any other relief to which AI2IO, LLC may be entitled, including, without limitation, reasonable attorneys' fees and all costs and expenses AI2IO, LLC reasonably incurs, and without any requirement to post bond.

12 **Limited Recourse.** The parties agree that any remedy or recourse available under or related to this Agreement is strictly limited to the parties to this Agreement. Except where due to their sole or gross negligence or willful misconduct, no past, present, or future director, officer, employee, incorporator, member, partner, stockholder, subsidiary, affiliate, controlling party, entity under common control, ownership or management, vendor, service provider, agent, or attorney of AI2IO, LLC shall have any liability under this Agreement for any claim based on, in respect of, or by reason of, the transactions contemplated hereby.

13 **Publications.** Subject to the terms of this Agreement, particularly Section 4 above, nothing herein shall prevent the publication of a final course project report, manuscript, thesis, dissertation, presentation to university faculty at Georgia Tech, or other purely academic work product in connection with the Purpose.

14 **General Provisions.**

(a) This Agreement may not be altered, amended, or modified by course of performance or in any other manner, except in writing signed by both parties. By executing this Agreement, You represent that You are at least eighteen (18) years of age.

(b) This Agreement will be governed by and construed in accordance with the laws of the State of Georgia, without regard to principles of conflicts of law. Each party irrevocably submits to the jurisdiction and venue of the federal and/or state courts of the State of Georgia for the purpose of any legal or equitable action arising under this Agreement.

(c) If any provision of this Agreement is for any reason held to be invalid, illegal, or unenforceable in any respect, the remaining provisions of this Agreement will remain in full force and effect to the maximum extent possible.

(d) This Agreement constitutes the entire agreement between the parties relating to the subject matter of this Agreement. All prior or contemporaneous agreements or understandings between AI2IO, LLC and You relating to the subject matter of this Agreement, whether oral or written, are superseded by and merged into this Agreement.

(e) Any waiver, express or implied, by any party of any of its rights arising under this Agreement will not constitute or be deemed a waiver of any other right under this Agreement, whether of a similar or dissimilar nature.

(f) This Agreement is binding on, and inures to the benefit of, the parties and their respective successors and assigns. This Agreement and all rights, duties, and obligations hereunder are personal to the parties and may not be assigned, sublicensed, encumbered, or otherwise transferred, in whole or in part, by either party without the prior written consent of the other party, except that either party may, without the other party's consent, assign its rights and obligations under this Agreement to (i) an affiliate, (ii) any purchaser of all or substantially all of such party's assets, (iii) any purchaser of a controlling equity ownership in such party or in such party's direct or indirect parent company, (iv) any parent company, affiliate, or subsidiary of a party, whether or not in existence at the time of execution of this Agreement, or (v) any successor to such party's business by merger.

(g) This Agreement may be executed in one or more counterparts, each of which will constitute an original, but all of which together will constitute a single document. Any signature delivered by a party by facsimile, .PDF, or other electronic transmission shall be deemed an original signature.

[Signature page follows.]

IN WITNESS WHEREOF, the parties have caused this Agreement to be executed by their authorized representatives as of the Effective Date.

AI2IO, LLC

Sign:

Print Name:

Title:

Date:

PARTICIPANT / STUDENT

Sign: 

Print Name: Cameron Ball

Date: 09/04/2026

Residential Address: 1111A Mcmillan Street, Atlanta Georgia, 30318